



CHAPTER xxix.

An Act to confirm a Provisional Order under the Private A.D. 1915.
Legislation Procedure (Scotland) Act 1899 relating to
Forfar Gas. [24th June 1915.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Procedure 62 & 63 Vict.
(Scotland) Act 1899 and it is requisite that the said Order should c. 47.
be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Forfar Gas Order Short title.
Confirmation Act 1915.

A.D. 1915.

SCHEDULE.

FORFAR GAS.

Provisional Order to authorise the Provost Magistrates and Councillors of the Burgh of Forfar to borrow additional money and to make further provisions and confer on them additional powers in relation to their gas undertaking and for other purposes.

WHEREAS prior to the year 1871 the royal burgh of Forfar in the county of Forfar (hereinafter called "the burgh") was supplied with gas by a company or association styled "The Forfar Gas Light Company":

34 & 35 Vict.
c. cii.

And whereas under the Forfar Gas Act 1871 (hereinafter in this Order called "the Act of 1871") the undertaking of the said company was vested in the magistrates and town council of the burgh for the time being (hereinafter called "the Corporation") subject to the payment of the preferable annuities and other sums by the said Act provided to be paid by the Corporation and by the same Act various powers were conferred on the Corporation and inter alia powers to manufacture supply and sell gas for public and private use and for the purpose of lighting the streets and public places within the burgh and also to supply gas by special agreement outwith the burgh within the parishes of Forfar Glamis Kinettles Kirriemuir Rescobie Dunnichen and Inverarity all in the county of Forfar:

And whereas by section 53 of the Act of 1871 the Corporation were authorised to borrow on mortgage any sums not exceeding five thousand pounds and to make and grant mortgages of the property and works forming their undertaking and of the several rates and charges leviable by them under the provisions of that Act in security of the payment of the money so borrowed and interest thereon:

43 & 44 Vict.
c. clxxvi.

And whereas by a Provisional Order (hereinafter in this Order called "the Order of 1880") made under the General Police and Improvement (Scotland) Act 1862 and confirmed by the Forfar Gas Amendment Confirmation Act 1880 the said section 53 of the Act of 1871 was amended and it was provided

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that the said section should be read as if the words “nine thousand pounds” had been inserted therein instead of the words “five thousand pounds”: A.D. 1915.

And whereas the Corporation have since the passing of the Act of 1871 maintained and managed their gas undertaking and executed the powers and purposes of that Act and the Order of 1880 and have borrowed the whole of the money thereby authorised to be borrowed as aforesaid:

And whereas in consequence of the increasing demand for gas within the limits prescribed by the Act of 1871 for the supply of gas by the Corporation and the extensions of works and mains thereby rendered necessary the powers of borrowing conferred by the Act of 1871 as amended by the Order of 1880 have proved inadequate for the purposes thereof and it is expedient that the Corporation be empowered to borrow additional money for the purposes of the Act of 1871 and this Order and of their gas undertaking:

And whereas it is expedient that the provisions and further powers in this Order contained should be made and conferred on the Corporation in relation to their gas undertaking:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Forfar Gas Order 1915 The Act of 1871 the Order of 1880 and this Order may be cited together as the Forfar Gas Acts 1871 to 1915. Short title and citation of Acts and Order.

2. The following Acts and parts of Acts are so far as the same are not inconsistent with the provisions of the Act of 1871 or of this Order hereby incorporated with this Order (that is to say):— Incorporation of Acts.

The Gasworks Clauses Act 1847 except section 17 thereof and the provisions with respect to the amount of profit to be received by the Undertakers when the gasworks are carried on for their benefit Provided that section 13 shall be read as if the words “or any premises” were inserted after the words “private building” and as if the

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words "Provided also that every such contract entered
" into by the Company shall be alike in terms and
" amount under like circumstances to all consumers "
were added at the end of that section:

The Gasworks Clauses Act 1871.

Interpreta-
tion.

3. In this Order the following words and expressions shall
have the respective meanings by this section assigned to them
unless there be something in the subject or context repugnant
to such construction (that is to say):—

"The burgh" means the burgh of Forfar within the limits
thereof as fixed and defined by the Representation of
the People (Scotland) Act 1832;

"The Corporation" means the provost magistrates and
councillors of the burgh;

"Gas undertaking" means the gasworks and gas undertaking
vested in the Corporation and authorised by the Act of
1871;

"Annuity" or "annuities" means the annuities payable
under the Act of 1871 or any of such annuities;

"Annuitant" or "annuitants" means any person or persons
entitled to and holding annuities;

"The sheriff" means the sheriff of the county of Forfar
and includes his substitute at Forfar;

"The commencement of this Order" means the date of the
passing of the Act confirming this Order;

In the Act of 1871 and the Order of 1880 "the Corporation"
shall be held to have the same meaning as in this
Order.

Power to
borrow addi-
tional money.

4. In addition to any money which the Corporation have
borrowed under the Act of 1871 as amended by the Order of
1880 the Corporation may from time to time under the authority
of this Order borrow for the purposes of the Act of 1871 and
this Order and of their gas undertaking any sum or sums of
money not exceeding in the aggregate the sum of twelve
thousand pounds and with the sanction of and subject to the
conditions as to period of repayment and otherwise prescribed
by the Secretary for Scotland such further sums as may be
requisite for the said purposes on the security of the several
rents rates and charges leviable and receivable by them under
the provisions of the Act of 1871 and this Order and the other

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revenues of the gas undertaking and if after having borrowed any moneys under the authority of this section the Corporation pay off the same or any part thereof otherwise than by means of the sinking fund hereinafter mentioned or out of the proceeds of land sold or other receipts of a capital nature it shall be lawful for them again to borrow the amount so paid off upon the same securities as those upon which the money so paid off were secured and so from time to time The Secretary for Scotland shall have and may exercise in relation to such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889. A.D. 1915.

5. Notwithstanding anything in this Order contained the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restriction on borrowing during continuance of present war.

6. Section 49 of the Burgh Police (Scotland) Act 1903 shall apply to the Corporation for the purposes of their gas undertaking and the Act of 1871 the Order of 1880 and this Order as if the Act of 1871 the Order of 1880 and this Order were public general Acts within the meaning of the said section and as if the current annual expenditure and other expenses of the Corporation for and in relation to the gas undertaking were current expenses or expenses as mentioned in that section and the several rents rates and charges leviable by the Corporation under the Act of 1871 the Order of 1880 and this Order were assessments within the meaning of the same section. Application of section 49 of Burgh Police Act 1903.

7. All moneys to be borrowed by the Corporation in respect of the gas undertaking after the commencement of this Order shall be secured by mortgages to be made and granted by the Corporation in the form and tenor contained in the schedule to this Order or to the like effect Provided that the mortgages to be granted for the moneys by this Order authorised to be borrowed shall declare that they are so granted by virtue or by and under the powers of this Order. Security for borrowed money.

8. The sections hereinafter specified of the Act of 1871 shall be and are hereby made applicable mutatis mutandis to the money to be borrowed by the Corporation under the authority of this Order and to the mortgages and discharges to be granted in respect thereof in the same manner as if the said Provisions as to mortgages &c. in Act of 1871 to be applicable.

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A.D. 1915. sections had been re-enacted in this Order with reference thereto
— (that is to say):—

Section 48 (Corporation to fix rates for gas).

Section 54 (Corporation may borrow on credit of a cash
 account).

Section 55 (Manner in which mortgages and orders on
 bank account to be signed and executed).

Section 56 (Arrears may be enforced by appointment of
 judicial factor).

Section 57 (Powers and duties of judicial factor).

Section 58 (Mortgages to be personal estate).

Section 59 (Discharge of mortgages) and Schedule E therein
 mentioned.

Section 60 (Providing for regular payment of annuities).

Section 62 (Lenders to Corporation not bound to see to
 application of money).

Guarantee
rate.

9. It shall be lawful for the Corporation and they are hereby required from time to time to fix impose and levy as after mentioned such an assessment to be termed "The Gas Contingent Guarantee Assessment" as shall be necessary to meet any deficiency in the money required to pay the annuities and interest thereon if any the interest on money borrowed and to be borrowed and other annual expenditure under the provisions and for the purposes of the Act of 1871 the Order of 1880 and this Order including therein all sinking and contingent fund contributions under the said Act and Orders.

Assessment
and levy of
rate.

10. The gas contingent guarantee assessment shall be imposed and levied by the Corporation in the manner provided by the Burgh Police (Scotland) Acts 1892 to 1911 for the imposing and levying of the burgh general assessment under those Acts.

Application
of money
borrowed.

11. The several sums borrowed by the Corporation under the authority of this Order shall be applied for the purposes of the Act of 1871 and this Order to which capital is properly applicable and to no other purpose whatsoever Provided that with the exception of the cost of enlarging or increasing the number of mains and pipes and of extending works mains and pipes the several sums borrowed by the Corporation under the

authority of this Order shall not be applied to any of the purposes to which the rents rates charges and other revenues of the Corporation in respect of their gas undertaking are by this Order specially made applicable excepting temporary advances for payment of the annuities provided by the Act of 1871. A.D. 1915.

12. All mortgages and securities granted by the Corporation in pursuance of the Act of 1871 as amended by the Order of 1880 and subsisting at the commencement of this Order shall during the continuance of such mortgages and securities have priority over any mortgages or securities to be made and granted by the Corporation in respect of the moneys authorised to be borrowed by this Order and all such last-mentioned mortgages and securities shall rank together *pari passu* and without any preference or priority the one over the other Provided that nothing contained in or done or suffered under this Order shall prejudice or affect the preference and priority of the perpetual annuities mentioned in the Act of 1871 and conferred by that Act. Priority of existing annuities and mortgages.

13. The rents rates and charges levied or leviabie under the authority of the Act of 1871 and this Order or either of them and the other revenues of the Corporation in respect of their gas undertaking whether arising under the Act of 1871 or this Order shall be applied in the following order of priority (that is to say):— Application of rates and charges.

Firstly In defraying the expenses of the management and maintenance of the gas undertaking including the annual costs charges and expenses of providing and supplying gas and the payment of any feu duties or ground annuals exigible in respect of any lands or property forming part of the gas undertaking:

Secondly In payment of the annuities by the Act of 1871 required to be paid so far as not from time to time redeemed and discharged and of the interest on any moneys borrowed under the authority of that Act as amended by the Order of 1880:

Thirdly In payment of the interest of money borrowed under the authority of this Order:

Fourthly In payment of the sums by the Act of 1871 the Order of 1880 and this Order directed to be set apart and appropriated for the purpose of the sinking fund as therein and hereinafter provided:

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—

Fifthly In payment of the sum which the Corporation are by the Act of 1871 authorised to set apart as a contingent fund :

Lastly In payment of such portion of the cost of enlarging or increasing the number of mains and pipes and of extending the works mains and pipes from time to time as may properly be charged against the revenue for the year and of any other necessary annual expenditure.

Repayment
of moneys
borrowed.

14. The Corporation shall in addition to the sums provided to be set apart annually as a sinking fund by the Act of 1871 as amended by the Order of 1880 set apart or pay over annually to the sinking fund created under the Act of 1871 a sum equal to one twenty-fifth of the money from time to time borrowed under this Order other than money borrowed with the sanction of the Secretary for Scotland as hereinbefore provided Provided always that the revenue from such sums as shall be set apart or paid over to the sinking fund shall from time to time be credited to the ordinary revenue of the gas undertaking.

Annual
return to
Secretary
for Scot-
land with
respect to
sinking fund.

15. The treasurer to the Corporation shall within two months after the expiration of each financial year during which any sum is by the Act of 1871 the Order of 1880 or this Order required to be set apart as a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and also showing the purposes to which any portion of such sinking fund and the interest thereof have been applied during the same period and the total amount remaining to the credit of such fund at the end of the same period and in the event of any default in making such return the treasurer to the Corporation shall be liable to a penalty not exceeding twenty pounds recoverable by the Secretary for Scotland as a debt to the Crown is recoverable If it appears to the Secretary for Scotland by such return or otherwise that the Corporation have failed to set apart the sum required by the Act of 1871 the Order of 1880 or this Order as a sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by the Act of 1871 the Order of 1880 or this Order the Secretary for Scotland may by order direct that a sum not

exceeding double the amount in respect of which such default shall have been made shall be set apart as part of the sinking fund and such order shall be enforceable by decree of either Division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose. A.D. 1915.

16. The prescribed number of candles shall be not less than fourteen. Quality of gas.

17. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be a testing-place which shall be provided by the Corporation at their gasworks. Testing-place.

18.—(1) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Illuminating power and testing of gas.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Corporation shall within three months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(4) If on any one day the gas supplied by the Corporation at the testing-place is of less illuminating power to an extent not exceeding one candle than it ought to be under the provisions of this section the average of all the testings made at such testing-place on that day and on the preceding day and on the following day shall be deemed to represent the illuminating power of the gas on such one day at such testing-place.

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Pressure.

19.—(1) All gas supplied by the Corporation to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Corporation shall afford to the examiner all reasonable facilities for making the test.

Penalty not
recoverable
in certain
cases.

20. No penalty shall be incurred by the Corporation for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Corporation. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Corporation.

As to speci-
fication of
internal
fittings and
construction
and placing
of pipes &c.
between
mains and
consumer's
premises.

21. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Corporation:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion

with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building: A.D. 1915.

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation. Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to the sheriff against such refusal and the sheriff may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to him proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid. Such appeal may be disposed of summarily and the judgment of the sheriff shall be final.

22. At least twenty-four hours' notice shall be given to the Corporation by every gas consumer either personally at the office for the time being of the gas department of the Corporation or in writing before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the moneys accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to

Gas consumers to give notice to Corporation before removing.

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A.D. 1915. such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on every demand note for gas rates or charges.

Power to
refuse supply
to persons in
debt for
other pre-
mises.

23. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas charges and meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply of
gas.

24. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the gas department of the Corporation or be given by the consumer personally at the said office.

Period of
error in
defective
meters.

25. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Corporation.

Tenant's
liability for
sub-tenant's
gas supply.

26. The Corporation in respect of the gas undertaking may in addition to their recourse against the actual consumer charge and recover from the tenant of any house who sublets his house furnished for any period not exceeding two months the amount of rates and charges for gas used and consumed and any other sums due to the Corporation by such sub-tenant during such sub-tenancy.

Differential
charges.

27. The Corporation may notwithstanding anything to the contrary in the Act of 1871 or in any Act incorporated therewith or with this Order charge within any part of their limits of gas supply differential rates as between gas supplied and used for private lighting purposes and gas supplied and used for any other purposes. Provided that the rate charged for gas supplied for such other purposes shall not in any case exceed the rate

charged for gas supplied for private lighting purposes and may be agreed between the Corporation and any person or persons requiring such supply having regard to the times and periods of supply and the quantity used and shall be the same to all persons under like circumstances. A.D. 1915.

28. The Corporation may on their lands described in the Schedule D to the Act of 1871 and on any lands which they may acquire by agreement under that Act erect and maintain dwelling-houses for their officers and workmen and others employed by the Corporation in connexion with the gas undertaking and may also appropriate for the like purpose any other lands for the time being vested in them for the purposes of the gas undertaking and may defray the cost of the erection of such dwelling-houses out of any moneys authorised to be borrowed by them for the purposes of the gas undertaking under the Act of 1871 as amended by the Order of 1880 or this Order. Provided that the Corporation shall not erect any dwelling-houses without the consent of the Local Government Board for Scotland. Dwelling-houses for officers and workmen.

29. Every consumer of gas supplied by the Corporation who uses a gas-engine shall if required to do so by the Corporation use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Corporation may cease to supply gas to such consumer. The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Corporation if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctuators for gas-engines.

30. The Corporation may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street road lane or passage laid out or made but not dedicated to public use supply such premises with gas and may lay down and take up alter relay or renew in across or along such street road lane or passage such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as Power to lay pipes in streets not dedicated to public use.

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A.D. 1915. — they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
fix service
pipes in
tenements.

31. In the case of any building occupied in flats or separate dwellings entering by a common stair or other access and belonging to one or more owners the Corporation may for the purpose of supplying any owner or occupier with gas lay and fit up service pipes in such common stair or access with branches to communicate with each separate flat or dwelling without the consent of the owner or occupier of any other separate flat or dwelling in any such building. Provided that any injury which may in the exercise of such power be done to any such stair or access shall be duly repaired by the Corporation.

Allowances
to employees
and depen-
dents of em-
ployees.

32. The Corporation may at any time and from time to time if they think fit make and grant allowances out of the revenues of their gas undertaking to aged and to disabled or infirm employees in connexion with that undertaking and to the dependents of any employees in connexion with that undertaking who may be serving with any of His Majesty's forces in time of war or emergency and with respect to such allowances the following provisions shall have effect (that is to say):—

(1) The granting and the amount of any such allowance and the times of payment and duration of the same shall be in the absolute discretion of the Corporation who are hereby empowered at any time to revise and alter the amount of any allowance so made or to withdraw and cancel and again to grant the same as they may see fit. Provided that the amount of the allowance so made to any employee shall not exceed one-half of the wages which he had last received and that the allowances made under the powers of this section shall not in any year exceed in the aggregate the cost of the gas consumed in the preceding year ending at the fifteenth day of May calculated at the rate of one halfpenny per one thousand cubic feet:

(2) The period of service of such employees (except in cases of temporary disablement and of employees called upon to serve with any of His Majesty's forces as aforesaid) shall be at least 10 years but such period need not imply continuous service for the full period of each year:

(3) The Corporation shall consider each application and record their decision: A.D. 1915.

(4) Any sums so paid by the Corporation under the provisions of this section shall be a charge on the gas revenues of the year.

33. From and after the commencement of this Order the following sections of the Act of 1871 shall be and are hereby repealed:—

Repeal of
certain sec-
tions of Act
of 1871.

Section 3 (10 & 11 Vict. cap. 15 incorporated).

Section 37 (Register of gas meter to be *prima facie* evidence).

Section 41 (Quality of gas).

Section 42 (Corporation to maintain apparatus to test illuminating power of gas).

Section 49 (Guarantee rate).

Section 50 (Assessment and levy of rate).

Section 52 (Application of revenue).

34. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation out of their funds and revenues applicable to the gas undertaking Provided that if the said costs charges and expenses are paid out of borrowed money the amount thereof shall be repaid out of such revenues within five years from the commencement of this Order.

Costs of
Order.

The SCHEDULE referred to in the foregoing Order.

FORM OF MORTGAGE.

FORFAR GAS.

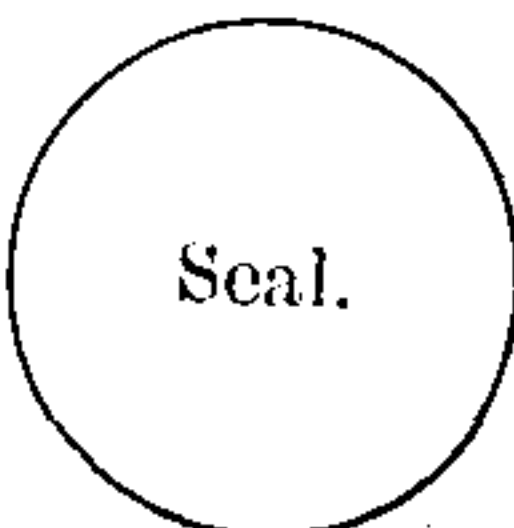
Mortgage No.

£

By virtue of the Forfar Gas Acts 1871 to 1915 We the provost magistrates and councillors of the burgh of Forfar (hereinafter called "the Corporation") as authorised and empowered by and acting under the said Acts [*If the mortgage be granted under the powers conferred by this Order add the words* this mortgage being granted by virtue or by and under the powers of the Forfar Gas Order 1915] in consideration of

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A.D. 1915. the principal sum of [*insert sum in words*] instantly advanced and paid to us for the purposes of the Forfar Gas Acts 1871 to 1915 by [*insert full name and designation*] Do hereby bind and oblige ourselves out of the several rents rates and charges leviable by us under the provisions of those Acts and the other revenues of our gas undertaking to pay at the term of [*insert term of payment*] to the said [*insert full name*] his executors administrators or assignees the said principal sum of [*insert the sum in words*] and also the interest thereon at the rate of [*insert rate of interest*] per centum per annum from the date hereof at the terms of Whitsunday and Martinmas in each year until the said principal sum is repaid and for further securing the repayment of the said principal sum and the interest thereon we do hereby assign to the said [*insert full name*] and [*his her or their*] foresaids such proportion of the said several rents rates charges and revenues as the said sum of [*specify amount*] doth or shall bear to the whole sum which is or shall be borrowed upon the credit of the said rents rates charges and revenues including the capital value of the unredeemed annuities under the Forfar Gas Act 1871 to hold unto the said [*insert name*] and [*his her or their*] foresaids from the date hereof until the said principal sum and the interest thereon shall be fully paid and satisfied And we consent to the registration hereof for preservation and execution IN WITNESS whereof these presents (so far as not printed) written and filled in by [*insert name and designation of writer*] are subscribed by [*insert full Christian and surnames*] two of the members of and by [*insert full Christian and surname*] the treasurer to the Corporation and are sealed with the common seal of the Corporation all at Forfar on the day of nineteen hundred and before these witnesses: A.B. [*insert full designation*] and C.D. [*insert full designation*].

A.B.	Witness	Member of Corporation	
C.D.	Witness	Member of Corporation	
		Treasurer to Corporation	

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